



ISSUANCE OF THE WRIT

- The court issues the writ within 3 days if the petition is sufficient.
- The respondent is required to submit a verified return.
- The writ may include a cease and desist order and other temporary reliefs.
- It is served by a court officer or authorized person.
- If personal service is not possible, substituted service applies.
- Delays or refusal in issuing or serving the writ may result in contempt or legal action.

RETURN OF RESPONDENT

- The respondent must file a verified return within 10 days (non-extendible).
- It should contain all defenses showing no violation of environmental laws
- Must include evidence such as affidavits, documents, and expert studies.
- If the respondent fails to file, the court proceeds ex parte (hearing without them).

HEARING

- The court may hold a preliminary conference to simplify issues and get admissions.
- The case is set for hearing after the return is received.
- Proceedings must be completed within 60 days.
- Given priority, similar to habeas corpus, amparo, and habeas data cases

DISCOVERY MEASURES

- A party may file motions to gather evidence.
- Includes ocular inspection and production of documents/things.
- These measures help prove the extent of environmental damage or threat.

OCULAR INSPECTION ORDER

- Requires proof that inspection is necessary.
- Must specify the location and be supported by affidavits.
- Court may allow entry to inspect or photograph property.
- Order includes who, when, where, and how the inspection is done.

PRODUCTION/INSPECTION ORDER

- Requires proof that documents/things are important evidence.
- Court may order submission of documents, objects, or digital files.
- Allows inspection, copying, or photographing.
- Specifies authorized persons and details of production.

CONCLUSION

- The Writ of Kalikasan is a powerful legal remedy that protects the environment and public welfare.
- It ensures quick court action, strict compliance, and accountability of respondents.
- Procedures like hearings and discovery measures help in gathering strong evidence.
- Overall, it promotes the protection of life, health, and property across affected communities.

**THANK
YOU**